

**SUPERIOR COURT OF SAN MATEO COUNTY****Probate - Probate****Courtroom 2C****Hearing Date: 09/03/2026 - 09:00 AM**

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Judge: Novak, Lisa A.**Clerk:** Ortega, Alexandrina**Reporter:** Conde, Wendy

23-PRO-00498	Conservatorship of John Payne	RE: Transfer Order, Fee Petition & Discharge of Counsel- Continued from 06/16/26
Line 3	Proposed Conservatee: Payne, John (LEE, JAMAY) Petitioner: Harris-Payne, Silvia (URBATSCH, KEVIN P.) Conservatee: Payne, John (LEE, JAMAY) Conservator: Harris-Payne, Silvia Temporary Conservatee: Payne, John (LEE, JAMAY) Interested Party: MAHONEY, FRANK W., III Temporary Conservator: Harris-Payne, Silvia	Other hearing
Tentative Ruling: NO APPEARANCE The Fee Petition is GRANTED; Independent counsel for the conservatee is discharged. The Court notes that the proof of recording of the grant deed for the property in San Francisco has been filed. The conservatorship is ordered transferred to San Francisco County.		

23-PRO-00787	IN RE THE MATTER OF: THE LILY YAEKO ISOBE REVOCABLE LIVING TRUST, DATED JANUARY 8, 1986, AS AMENDED	EX PARTE APPLICATION FOR ORDER SUSPENDING TERENCE WYNN ISOBE AND FOR ORDER APPOINTING TEMPORARY TRUSTEE
Line 4	Petitioner: Isobe, Sheryl Lynn (CUMMINS, JAMES R. BOURNE, CHRISTEN E) Respondent: Isobe, Terence Wynn (MCFARLAND, ERIC D.) Decedent: ISOBE, LILY YAEKO	Petition Hearing
Tentative Ruling: APPEARANCE OPTIONAL (Zoom allowed) Petitioner seeks relief which it has not noticed, and which is not affirmatively pled in the petition, which originally came before this court ex parte. That petition sought the temporary suspension of the trustee, and appointment of a temporary trustee. Then in the prayer for relief, petitioner seeks, "3. <i>Setting a hearing schedule for consideration of Respondent's permanent removal as Trustee;</i> " The court is not going to set the matter for		



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permanent removal of the trustee when no such petition has been filed. If the court were to grant the relief actually argued in the “ex parte” petition, then the trust would be left with a suspended trustee and a temporary trustee. Petitioner asks the Court to set a hearing for removal, but does not seek removal.

The Court has the power to suspend or remove a trustee, as set forth in PrC 15642(a) and (e):

(a) A trustee may be removed in accordance with the trust instrument, *by the court on its own motion*, or on petition of a settlor, cotrustee, or beneficiary under Section 17200.”

(e) *If it appears to the court that trust property or the interests of a beneficiary may suffer loss or injury pending a decision on a petition for removal of a trustee and any appellate review*, the court may, on its own motion or on petition of a cotrustee or beneficiary, compel the trustee whose removal is sought to surrender trust property to a cotrustee or to a receiver or temporary trustee. *The court may also suspend the powers of the trustee to the extent the court deems necessary.*”

Here, Respondent is correct that there is no Petition pending. The declarations submitted by the petitioner and respondent set the framework for what appears to be a breach of a settlement agreement, but the Court does not find that it warrants new relief sought of suspending the trustee, and as such neither subdivisions (a) or (e) referenced above are applicable. The court does not deem it necessary to suspend the powers of the trustee when a more appropriate avenue for relief remains available to the petitioner. It is not the proper pleading to address the alleged wrongdoing. The Petition is DENIED without prejudice for seeking relief in an appropriate petition.

25-PRO-00267	Guardianship of Laura Sofia Ceballos Norena	Continued from 06/30/26 Continued from 06/30/26
Line 5, 6	Petitioner: Ceballos Norena, Laura Sofia (O'BRIEN, JEFFREY) Ward: Ceballos Norena, Laura Sofia Proposed Guardian: Norena Perez, Henry	Appointment of Guardian for Person of the Minor Petition for Special Immigrant Juvenile Findings